

Low Volume Vehicle Code

**Developed and issued by the Low Volume Vehicle Technical Association
Incorporated, with the approval of the New Zealand Transport Agency**

The Low Volume Vehicle Code is the umbrella document that sets out the legal frame-work under which modified and individually-constructed motor vehicles may be modified and built, and legally registered for road use in New Zealand. The Low Volume Vehicle Code is incorporated by reference within the Land Transport Rule: Vehicle Standards Compliance 2002, which is the legislative document governing all motor vehicle certification in New Zealand, made by the Minister of Transport.

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Signed in accordance with paragraph 1.35 of the Low Volume Vehicle Code, on.....by

on behalf of the NZ Transport Agency:

on behalf on the LVVTA:

LVV Code Amendment Record:

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9	Revision to incorporate new definitions for 'modified production low volume vehicle' and 'scratch-built low volume vehicle', and schedule for periodic review of key LVV documents	01.07.2016	01.07.2016
10	Revision to incorporate vehicle groups that are not required to be certified to the LVV Code	25.10.2016	25.10.2016
11	Revision to incorporate provision for LVCM-appointed LVV certifiers	30.06.2017	30.06.2017
12	Revision primarily to amend 'modified production' and 'scratch-built' low volume vehicle definitions	01.10.2018	01.10.2018

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Overview

Purpose of the LVV Code

The Low Volume Vehicle Code ('the Code') is a document that has been developed by the Low Volume Vehicle Technical Association Inc ('LVVTA'), with the approval of the New Zealand Transport Agency (the Agency). It is an umbrella document that sets out the legal framework under which the low volume vehicle certification system ('LVV certification system') in New Zealand operates for all modified and individually-constructed (scratch-built) vehicles.

The LVV certification system is necessary because it is not practical to test individual or low-volume modifications and construction features against the expensive test processes required by the international standards which apply to high-volume production vehicles.

The purpose of the low volume vehicle certification system, therefore, is to ensure that all modified production vehicles - whether modified for commercial, passenger service, disability, recreational, leisure, sporting, or compliance purposes – and scratch-built vehicles, have been designed and constructed in such a way that they are safe to be operated on the road, and comply as closely as practicable with the legal safety requirements applicable to high volume production vehicles.

Incorporation of other documents under the LVV Code

The Low Volume Vehicle Code (the Code) incorporates by reference a number of technical and procedural documents, which provide information and support on the way that the low volume vehicle certification process must be carried out.

The documents incorporated under the Code are the 'LVV Operating Requirements Schedule', the 'Low Volume Vehicle Standards', the 'Low Volume Vehicle Information Sheets', and the 'Low Volume Vehicle Form-sets'. The 'LVV Operating Requirements Schedule' (LVV ORS) provides the procedural and operational requirements of the certification system by which the Low Volume Vehicle Certifiers (LVV Certifiers) must operate. The 'Low Volume Vehicle Standards' (LVV Standards) provide a wide range of technical requirements from which the LVV Certifiers must base their technical decisions. The 'Low Volume Vehicle Forms and Form-sets' (LVV Forms and Form-sets) must be used by the LVV Certifiers to record the compliance details of each vehicle that they certify to the Code. The 'Low Volume Vehicle Information Sheets' (LVV Information Sheets) provide the LVV Certifiers with additional technical and procedural instructions on an as-and-when-required basis.

In addition to these documents, the Code also incorporates the 'New Zealand Car Construction Manual' (Car Construction Manual), which specifies the historical knowledge-based best-practice requirements for the safe modification and construction of extensively modified and scratch-built low volume vehicles. Each LVV Standard specifies that, where a particular modification or scratch-built feature is outside of the scope of an applicable LVV Standard, the provisions of the New Zealand Car Construction Manual applies. Additionally, the New Zealand Car Construction Manual applies in situations where an LVV Standard is not in force or applicable for a particular modification or scratch-built feature.

The LVV ORS, the LVV Standards, the LVV Information Sheets, the LVV Form-sets, and the New Zealand Car Construction Manual are incorporated under the Code via Annexes 1 through 4, which are contained at the back of the Code.

Legal status of the LVV Code

The Code is legally binding because it was originally gazetted as an alternative standard under the Transport (Vehicle Standards) Regulations 1990 ('VSR90'), and in more recent times has been incorporated by reference within the 'Land Transport Rule: Vehicle Standards Compliance 2002' and many of the individual equipment rules (the 'Rules') made by the Agency for the Minister of Transport.

The Code itself, the LVV ORS, and the LVV Standards, or any amendment to any of those documents, are formally signed off by an authorised representative of LVVTA and an authorised representative of the Agency.

The LVV Forms and Form-sets, the LVV Information Sheets, and the New Zealand Car Construction Manual are recognised and agreed by the Agency as mandatory documents within the LVV certification system. LVV Certifiers are bound by the requirements of the LVV Forms and Form-sets, LVV Information Sheets, and New Zealand Car Construction Manual just as they are bound by the Code, LVV ORS, and LVV Standards.

Details of the way in which the Code (together with the documents incorporated by reference within the Code) is legally empowered by the 'Land Transport Rule: Vehicle Standards Compliance 2002' is fully explained in Annex 7.

Content of the Code

Part 1 of the Code sets out the procedures for developing and approving the Code itself, together with the LVV ORS and the LVV Standards.

Part 2 of the Code sets out the requirements for the inspection, certification, and fitting of LVV certification plates to low volume vehicles.

The LVV Certification Manual

The LVV Code, LVV ORS, LVV Standards, LVV Forms and Form-sets, and LVV Information Sheets are all contained within the 'Low Volume Vehicle Certification Manual' (LVV Certification Manual) of the LVVTA. The LVV Certification Manual is a multi-volume document that also includes a number of other supporting and advisory documents under a section called 'Supplementary Information'. In addition, the LVV Certification Manual contains a section which includes Type Approval, Component Approval, and Component Endorsement certificates, along with another section for LVVTA Newsletters.

It has been agreed by NZTA and LVVTA that the LVV Certification Manual fulfills the role for the LVV certification process which would otherwise be provided by an NZTA Vehicle Inspection Requirements Manual (VIRM). The existence of the LVV Certification Manual negates the need for an NZTA low volume vehicle VIRM.

The New Zealand Car Construction Manual, whilst not incorporated within the LVV Certification Manual, is however an integral and essential part of the overall LVV certification system.

The way in which the various documents referred to above are incorporated by reference under the LVV Code, and fit within the LVV Certification Manual, is shown in *Diagram 1: Documents incorporated by reference under the LVV Code, & LVV Certification Manual*.

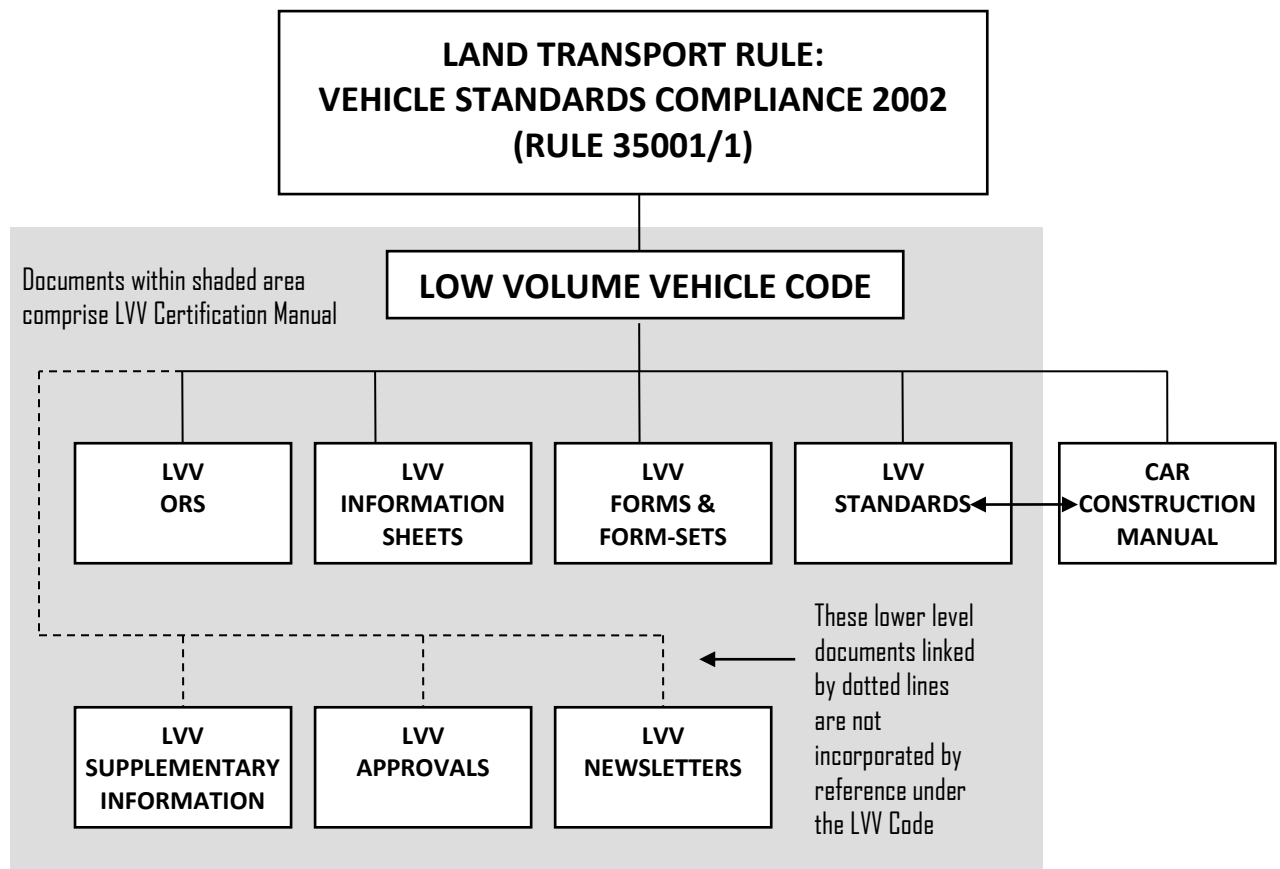


Diagram 1: Documents incorporated by reference under the Code, & LVV Certification Manual

Application of LVV Standards

Additional LVV Standards will come into force progressively over time, in many cases in step with the corresponding Rules, and will be applied as set out in this Code. If no LVV Standard is in force for a particular component or system, or a particular modification or scratch-built feature is outside of the scope of an applicable LVV Standard, either the relevant LVV Information Sheet or the technical requirements of the New Zealand Car Construction Manual must be used to determine whether a low volume vehicle is safe to be operated on the road.

Availability of the Code

Copies of the Code, the LVV ORS, the LVV Standards, and the LVV Information Sheets, as they come into force, are available to the motor vehicle industry and public, free of charge, from the LVVTA website, www.lvvta.org.nz, or by request to the LVVTA office.

Availability of the New Zealand Car Construction Manual

Copies of the New Zealand Car Construction Manual may be purchased through the New Zealand Hot Rod Association (Inc) from their website, www.hotrod.org.nz, or through the Low Volume Vehicle Technical Association (Inc) from their website, www.lvvta.org.nz.

Copyright assertion

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Part 1 Purpose, scope, and development

1.1 Purpose

1.1(1) The purpose of the Code is to set out requirements for providing assurance that, before being allowed to be operated on the road, scratch-built vehicles and modified production vehicles:

- (a) are safe to be operated on the road; and
- (b) comply as closely as practicable with the legal safety requirements applying to production vehicles of the same class and date of manufacture.

1.2 Scope

1.2(1) The Code applies to motor vehicles that are either scratch-built vehicles, or modified production vehicles, either:

- (a) of classes LC, LD, LE1, LE2, MA, MB, MC, MD1, MD2, and NA; or
- (b) that are vehicles of a class not in Table-A that do not exceed 3500 kg GVM.

NOTE 1: MA, MB, and MC classes have no upper gross vehicle mass (GVM) limit, therefore an MA, MB, or MC-class vehicle can exceed 3500 kilograms GVM, and can still be subject to the LVV Code.

NOTE 2: Details of the classes referred to above can be found within *Table-A* of the *Land Transport Rule: Vehicle Standards Compliance 2002*, or *LVV Information Sheet 03-2010*.

1.2(2) The Code specifies, amongst other things:

- (a) in Part 1, requirements for developing and implementing the Code, LVV ORS, and LVV Standards; and
- (b) in Part 2, requirements for:
 - (i) determining whether or not a modification has affected compliance of a vehicle with an applicable requirement; and
 - (ii) inspecting, certifying, and affixing of LVV certification plates to low volume vehicles.

1.2(3) The LVV Standards, LVV Forms and Form-sets, LVV Information Sheets, and LVV Supporting Documents listed in *Annexes 1* through *4*, together with any amendments to those LVV Standards, LVV Forms and Form-sets, LVV Information Sheets, and LVV Supporting Documents, made after this version of the Code comes into force, are hereby incorporated into the Code.

NOTE: The reference to 'LVV Supporting Documents' in 1.2(3) is the LVV ORS and the NZ Car Construction Manual, and any other documents listed in *Annex 4* in the future.

- 1.2(4) Additional guidance, explanatory, or technical material specified in the Operational and Reference volumes of the LVV Certification Manual may be used to assist in implementing the Code.

1.3 Development process for LVV Code, Standards, and Supporting Documents

- 1.3(1) The LVVTA, through consultation with its member associations, the Agency, and where appropriate interested industry bodies and members of the public, develops the Code, including the LVV Standards, and the LVV ORS.

NOTE 1: The LVVTA will make all reasonable efforts to consult widely and effectively during the process of developing an LVV Standard, with any government agencies, regulatory groups, advocacy groups, enthusiast clubs and associations, and members of the industry, which may be affected by the outcome of any requirements specified within the LVV Standard.

Any person may view the 'Documents for Consultation' section under the 'Documents' tab of the LVVTA's website www.lvvta.org.nz to view any LVV Standards that may be under development at any time. Any interested party may download any 'Document for Consultation' free of charge, and is welcome to make a submission at any time during which the LVV Standard is under development, and also at any time afterwards.

NOTE 2: A review of LVVTA's development and consultation processes was undertaken by an NZTA Senior Legal Counsel during November 2011, based on a documented case study of the development and consultation process of LVV Standard 45-80(00) (Disability Transportation Systems) over the period 2003 to 2011. LVVTA's consultative processes were found to be satisfactory.

- 1.3(2) The order in which the development of new LVV Standards will occur will be priority-based, and the prioritisation or re-prioritisation process will be triggered by such factors as:

- (a) the identification of safety risks associated with a particular component, system, or modification or construction method; or
- (b) new trends, or increased popularity of trends, in vehicle modification and construction types; or
- (c) legislative or Government policy changes that may impact on the type or volume of vehicle modifications being undertaken; or
- (d) the emergence of new technology associated with vehicle modification and construction.

- 1.3(3) In order to facilitate LVVTA's planning and prioritisation in relation to the development of new LVV Standards, the Agency will provide LVVTA with as much advance notice of their Land Transport Rule development programming, including proposed amendments to existing Rules, as is reasonably practicable.

- 1.3(4) The Code, the LVV Standards and the LVV ORS must be approved by the Member Council of the LVVTA and the Agency before they can come into force.

- 1.3(5) Approval by the LVVTA and the Agency is indicated by a signature and date placed on page 1 of the Code, and of each LVV Standard, and of the LVV ORS, by an authorised representative of the LVVTA and an authorised representative of the Agency.

NOTE: An 'authorised representative of the Agency' as referred to in 1.3(5) is, for the purposes of the Agency's approval of the Code, an LVV Standard or the LVV ORS, an authorised Agency Senior Engineer or an authorised Agency Manager.

- 1.3(6) The Code comes into force from the application date specified by notice in the New Zealand Gazette.

NOTE: The *New Zealand Gazette* is issued weekly to publicly notify all additions and changes to Government regulations.

- 1.3(7) Any new LVV Standards, LVV Forms and Form-sets, LVV Information Sheets, and LVV Supporting Documents come into force from the application date specified on the title page of each document.

- 1.3(8) The LVV Forms and Form-sets and LVV Information Sheets are recognised and agreed by the Agency as mandatory documents within the LVV certification system.

- 1.3(9) The New Zealand Car Construction Manual is recognised and agreed by the Agency as a mandatory best-practice LVV Supporting Document in the case where a particular modification or scratch-built feature is outside of the scope of an applicable LVV Standard, or where an LVV Standard is not in force or appropriate for a particular modification or scratch-built feature.

NOTE 1: The LVV Information Sheets and New Zealand Car Construction Manual are critical documents in relation to the *Land Transport Rule: Vehicle Standards Compliance 2002* and the LVV Code, because these documents provide a means of ensuring compliance with the various General Safety Requirements contained within the Land Transport Compliance Rule and the various Land Transport equipment rules.

NOTE 2: Because the LVV Forms and Form-sets, LVV Information Sheets, and New Zealand Car Construction Manual are mandatory LVV Supporting Documents, an LVV Certifier is legally required to follow and apply them. Failure to do so constitutes an offence in the same way as failure to apply the LVV Code, LVV Standards, or LVV ORS would.

- 1.3(10) LVV Standards, LVV Forms and Form-sets, LVV Information Sheets, and the LVV Supporting Documents already incorporated into the Code, or authorised for future incorporation into the Code, are listed in *Annexes 1* through *4* of the Code, as applicable.

- 1.3(11) An LVV Standard, LVV Form and Form-set, LVV Information Sheet, or LVV Supporting Document made under a version of the Code shall remain in force until it is amended or revoked, even if the Code under which the document was made is amended.

- 1.3(12) Where any conflict or inconsistency is identified between the Code and any Land Transport Rules, a resolution to the conflict or inconsistency will be made by agreement reached by the NZTA-LVVTA Policy Working Group.

1.4 Review process for LVV Code, Standards, and Supporting Documents

- 1.4(1) The LVV Operating Requirements Schedule will be reviewed not less than once within every two-year period.
- 1.4(2) Each LVV Standard will be reviewed not less than once within every five-year period, so that, with some variation allowed for, dependent on the number of LVV Standards in force at any given time, four LVV Standards will be reviewed each year.

NOTE: The LVVTA will make all reasonable efforts to consult widely and effectively during the process of amending an LVV Standard, with any government agencies, regulatory groups, advocacy groups, enthusiast clubs and associations, and members of the industry, which may be affected by the outcome of any amendments made to the LVV Standard.

Any person may view the 'Documents for Consultation' section under the 'Documents' tab of the LVVTA's website www.lvvtta.org.nz to view any LVV Standards that may be under amendment at any time. Any interested person may download any 'Document for Consultation' free of charge, and written submissions on any of LVVTA's Standards are welcomed at any time, and can be sent to info@lvvtta.org.nz.

- 1.4(3) The LVVTA maintains, for each LVV Standard, an on-going submission register, which is comprised of any ideas, feedback, or suggestions, sourced both internally and externally, that will be compiled and considered for inclusion into the relevant LVV Standard at the next available amendment opportunity.
- 1.4(4) The order in which the reviewing process of the LVV Standards occurs will be priority-based, and the prioritisation or re-prioritisation process will be triggered by such factors as:
- (a) the identification of short-comings, gaps, or incorrect guidance within a Standard; or
 - (b) the identification of areas where LVV Certifiers or members of the public are experiencing difficulty in interpreting or applying the requirements of a Standard; or
 - (c) the identification of requirements within a Standard that cannot be practically met; or
 - (d) the emergence of new technology associated with vehicle modification and construction; or
 - (e) shifts in popularity of vehicle modification and construction trends; or
 - (f) legislative or Government policy changes that may impact on the type or volume of vehicle modification or construction being undertaken; or
 - (g) the identification of safety risks associated with a particular component, system, or modification or construction method.

- 1.4(5) The reviewing process of a particular LVV Standard may or may not result in amendments or additions being made to a Standard, however when determining whether or not to undertake an amendment process of a Standard, consideration will be given to such factors as:
- (a) whether or not there are required changes and additions that have been identified in relation to the Standard and scheduled for inclusion; or
 - (b) whether or not any significant safety risks exist in relation to the matters covered within the scope of the Standard; or
 - (c) whether or not the content of the Standard remains relevant to:
 - (i) current vehicle modification and construction trends; and
 - (ii) the vehicle components, systems, and technology available to the modification and construction sector;
- or
- (d) whether there has been, or are pending, any changes to Government legislation or policy that may affect vehicle modification and construction associated with the Standard in question.
- 1.4(6) In order to facilitate LVVTA's planning and prioritisation in relation to the periodic amendment of existing LVV Standards, the Agency will provide LVVTA with as much advance notice of their Land Transport Rule development programming, including proposed amendments to existing Rules, as is reasonably practicable.
- 1.4(7) Any amendments to the Code, the LVV Standards, and the LVV ORS, must be approved by the Member Council of the LVVTA and the Agency before they can come into force.
- 1.4(8) Approval of any amendments made to the Code, or to any LVV Standard, or to the LVV ORS, must be made by the LVVTA and the Agency, indicated by a signature and date placed on page 1, by an authorised representative of the LVVTA and an authorised representative of the Agency.

NOTE: An 'authorised representative of the Agency' as referred to in 1.4(8) is, for the purposes of NZTA's approval of an amendment to the Code, an LVV Standard or the LVV ORS, an authorised Agency Senior Engineer or an authorised Agency Manager.

- 1.4(9) Any amendments to the Code come into force from the application date specified by notice in the New Zealand Gazette.

NOTE: The *New Zealand Gazette* is issued weekly to publicly notify all additions and changes to Government regulations.

- 1.4(10) Any amendments to any LVV Standards, LVV Forms and Form-sets, LVV Information Sheets, and LVV Supporting Documents, come into force from the application date specified on the title page of each document.

1.5 Revocation

- 1.5(1) Where the Agency believes, on reasonable grounds relating to safety, and after reasonable consultation with LVVTA, that any provisions of any LVV Standard, LVV Form and Form-set, LVV Information Sheet, or LVV supporting document, are not appropriate or sufficient, the Agency may, by notice given to the LVVTA, revoke any such provisions, and the revocation shall take effect from such date as the Agency specifies in that notice of revocation.
- 1.5(2) Where notice is given under 1.5(1) the Agency and/or the LVVTA must take such steps as may be reasonably necessary to advise LVV Certifiers of the revocation, but no notice shall be invalid because of any failure to so advise.

1.6 Master copies of the Code, LVV Standards, and LVV ORS

- 1.6(1) There are two master copies of the Code, each LVV Standard, and the LVV ORS:
- (a) one of which is held by the LVVTA; and
 - (b) one of which is held by the Agency.
- 1.6(2) Each master copy of the Code, each LVV Standard, and the LVV ORS must consist of a full set of documentation, with each page containing:
- (a) a sequential page number; and
 - (b) the date of issue or amendment.
- 1.6(3) Each version of the Code, LVV Standard, and LVV ORS must incorporate an amendment record document to verify that amendments have been incorporated in the Code, LVV Standard, or ORS as applicable.

Part 2 Implementation of the LVV Code and Standards

2.1 When LVV Certification is required

- 2.1(1) To be operated on the road, a low volume vehicle must be certified for compliance with the Code.
- 2.1(2) A vehicle becomes a low volume vehicle and must be certified for compliance with the Code when the vehicle concerned either:

- (a) has been scratch-built and is being certified for first registration in New Zealand; or
- (b) has been modified in such a way that continued compliance with one or more applicable safety-related legal requirements prescribed by New Zealand land transport legislation may have been affected, and:
 - (i) is being certified for first registration in New Zealand; or
 - (ii) is in-service.

NOTE 1: Under the original version of *Land Transport Rule: Vehicle Standards Compliance*, LVV certification was required for vehicles being re-registered in New Zealand. This requirement has been removed in *Land Transport Rule: Vehicle Standards Compliance 2002*, so the same requirement was removed from 2.1(2) of (Issue 7 version) of the Code.

NOTE 2: 2.1(2) means that the LVV certification process must be applied in order to determine whether the modification has in fact affected the vehicle's continued compliance.

NOTE 3: If a modification was carried out prior to LVV certification coming into force (1 January 1992), a vehicle is not required to be LVV certified, provided that a valid Modification Declaration Certificate is produced to an Authorised Vehicle Inspector. The Authorised Vehicle Inspector may also accept other bonafide evidence which verifies that the modifications were carried out prior to LVV certification coming into force (1 January 1992). Examples of acceptable evidence are an invoice from the company which performed the modifications, insurance policy cover notes, and motoring magazine features, provided that they record the vehicle's registration number or VIN, the modification details, and a date or other information verifying when the modifications were carried out. Documents such as statements from previous owners are not acceptable evidence.

2.2 Who carries out LVV Certification

- 2.2(1) Certification of a low volume vehicle must only be carried out by an LVV Certifier appointed by NZTA, and who is authorised by the Agency to certify that type of low volume vehicle, based on its class and modification.
- 2.2(2) Certification of a low volume vehicle which is a Type-approved low volume vehicle, may be carried out by an LVV Certifier appointed by the Agency to certify under LVV Certifier category 'LVCN Commercial Modification'.

NOTE: The LVV Certifier categories for which the Agency may authorise an LVV Certifier for, are contained in sub-section 3.1 of the *LVV ORS*.

2.3 When a vehicle qualifies for LVV certification

- 2.3(1) A scratch-built vehicle must be LVV certified only if there is adequate assurance that the vehicle:
 - (a) is safe to be operated on the road; and
 - (b) is designed and constructed using materials and components that are fit for their purpose; and

- (c) complies with all applicable requirements specified in the LVV Standards, LVV Forms and Form-sets, LVV Information Sheets, and LVV Supporting Documents.

2.3(2) Subject to 2.3(3), a modified vehicle must be LVV certified only if there is adequate assurance that the modifications:

- (a) have not compromised the safe operation of the vehicle; and
- (b) are designed and constructed using materials and components that are fit for the purpose; and
- (c) have not compromised the vehicle's continued compliance with all other applicable safety-related legal requirements prescribed by New Zealand land transport legislation; and
- (d) in the case of a vehicle which has been modified whilst registered, including a scratch-built vehicle, there is adequate assurance that the vehicle as a whole complies with all other applicable safety-related legal requirements prescribed by New Zealand land transport legislation.

2.3(3) A modified vehicle is not required to be LVV certified, or further certified, in order to be operated on the road, if either:

- (a) the modifications could not affect continued compliance with any applicable safety-related legal requirements prescribed by New Zealand land transport legislation of any components or systems within the vehicle when manufactured or previously modified; or
- (b) the modifications are listed within the LVVTA *LVV Modification Threshold Schedule*; or
- (c) the vehicle is modified for the purpose of law enforcement or the provision of emergency services; or
- (d) the vehicle is identified as having been modified by a second-stage vehicle manufacturer, and complies with an approved overseas standard which is listed in *Annex 6*; or
- (e) the modified vehicle is authorised by an LVV Authority Card, for a specific purpose listed in *Annex 5*, and the owner can present such authorisation that approves each modification that is subject to an applicable safety-related legal requirement prescribed by New Zealand land transport legislation, in the form of a valid LVV Authority Card held in the name of that owner.

NOTE: The LVV Modification Threshold Schedule referred to in 2.3(3)(b), authorised by *LVV Information Sheet # 01-2003*, can be found on the LVVTA website www.lvvta.org.nz. The content of this schedule can also be found within the Modification Tables contained through the *NZTA In-service Vehicle Inspection Requirements Manual*.

- 2.3(4) A low volume vehicle must be declined LVV certification where there is reason to believe that the vehicle does not comply with the requirements of 2.3(1) or 2.3(2).
- 2.3(5) For a vehicle to qualify for LVV certification the vehicle must first be inspected in accordance with 2.4, 2.5, and 2.6.
- 2.3(6) For an unregistered modified production vehicle to be inspected for LVV certification, it must first, prior to registration, have both its identity verified and its original standards compliance established by an inspecting organisation appointed under 2.2(1)(e) of *Land Transport Rule: Vehicle Standards Compliance 2002*.

2.4 What an inspection for LVV Certification must establish

- 2.4(1) For scratch-built vehicles, except where one or more of 2.5(1), 2.5(2), or 2.5(3) apply, the LVV Certifier must inspect the whole vehicle to establish:
- (a) the quality and suitability of the design, materials, components, and workmanship associated with each aspect of the vehicle's construction; and
 - (b) the collective influence of the design, and all of the materials, components, and workmanship used on the fitness for purpose of the vehicle; and
 - (c) that the vehicle complies with the general safety requirements for in-service fitness.
- 2.4(2) For modified production vehicles, except where one or more of 2.5(1) or 2.5(2) or 2.5(3) apply, the LVV Certifier must inspect the whole vehicle to establish:
- (a) the presence of each modification; and
 - (b) the quality and suitability of the design, materials, components, and workmanship associated with each modification; and
 - (c) the effect of each modification on the vehicle's compliance with all applicable safety-related legal requirements prescribed by New Zealand land transport legislation; and
 - (d) the collective influence of all the modifications on the fitness for purpose of the vehicle; and
 - (e) where a vehicle has been modified after registration, that the vehicle complies with the general safety requirements for in-service fitness.
- 2.4(3) An LVV Certifier must provide, for each aspect of every LVV certification inspection, either:

- (a) the appropriate LVV Forms and Form-sets listed in *Annex 2* applicable to each scratch-built feature or modification, together with all of the supporting information required by the LVV Forms and Form-sets and 2.5 of the *LVV ORS*; or
- (b) where there is no appropriate LVV Form or Form-set listed in *Annex 2* that is applicable to a scratch-built feature or modification, a written report that provides assurance that the requirements of 2.4(1) or 2.4(2) have been met, together with all supporting information required by 2.5 of the *LVV ORS*.

2.5 Other requirements for LVV Certification inspection

- 2.5(1) Where a LVV certification plate is already affixed to a low volume vehicle, the LVV Certifier may apply the requirements of 2.4(1) or 2.4(2) only to those components and systems that have been modified since the previous LVV certification, or which may have been affected by a modification carried out since the previous LVV certification.
- 2.5(2) Where a vehicle is modified to enable its operation by, or carriage of, people with disabilities, together with or without other persons, the LVV Certifier may apply the requirements of 2.4(1) or 2.4(2) only to those components and systems that are modified for that purpose, provided that:
 - (a) no modifications that affect compliance with applicable requirements are present for purposes other than to enable vehicle operation by, or carriage of, people with disabilities, together with or without other persons; or
 - (b) the LVV Certifier responsible for the LVV certification of the vehicle provides evidence from another LVV Certifier that the modifications that exist for other purposes comply with 2.4(1) or 2.4(2).
- 2.5(3) The LVV Certifier, instead of inspecting the whole vehicle, may exclude the general safety requirements inspection for in-service fitness of 2.4(1)(c) and 2.4(2)(e) if:
 - (a) the vehicle is not an unregistered scratch-built vehicle; and
 - (b) another Authorised Vehicle Inspector has completed a warrant of fitness or certificate of fitness check-sheet no more than fourteen days prior to the current inspection; and
 - (c) the LVV Certifier has no reason to believe that any item which the other Certifier has shown as passed on the check-sheet has been:
 - (i) modified, or further modified, so that a component or system covered by an applicable requirement is directly or indirectly affected; or
 - (ii) subject to repair since the date of completion of the check sheet.

2.6 Road test requirement for LVV certification inspections

- 2.6(1) All inspections must incorporate the road-testing requirements, if applicable, specified within *Section 4* of the *LVV ORS*.

2.7 Statement of compliance

- 2.7(1) Where, following an inspection, a LVV Certifier has determined that a low volume vehicle is in compliance, the LVV Certifier must prepare and sign the *F001 Statement of Compliance Certificate* listed in *Annex 2* confirming the vehicle's compliance with the Code.

NOTE: The *F001 Statement of Compliance Certificate* referred to in 2.7(1) shall, for the purposes of compliance with 7.6 of the *Land Transport Rule: Vehicle Standards Compliance 2002*, be the record of determination.

- 2.7(2) For modified production low volume vehicles, and all scratch-built low volume vehicles further modified after initial LVV certification, the record of determination together with copies of the LVV Forms and Form-sets and other evidential documents, must satisfactorily identify and record:

- (a) all modifications that have been carried out on the vehicle; and
- (b) the systems or components within the vehicle that may have been affected by the modifications; and
- (c) which LVV Standards, or other standards or requirements that each modification complies with; and
- (d) how compliance with those LVV Standards, or other standards or requirements, has been assessed.

- 2.7(3) For a scratch-built low volume vehicle, prior to registration for the first time, the record of determination together with copies of the LVV Forms and Form-sets and other evidential documents, must satisfactorily identify and record:

- (a) the components and systems that the vehicle is comprised of; and
- (b) which LVV Standards, or other standards or requirements that each component and system complies with; and
- (c) how compliance with those LVV Standards, or other standards or requirements, has been assessed.

- 2.7(4) The documents required by 2.7(2) or 2.7(3) must be filled out in accordance with the requirements specified in *Section 2* of the *LVV ORS*.

- 2.7(5) Unless where a LVV certification plate is issued in accordance with *F006 LVV Certification Plate Pre-order Form*, the documents required by 2.7(2) or 2.7(3) must be forwarded to LVVTA for processing prior to the issuing of the LVV certification plate.

NOTE 1: The *F006 Certification Plate Pre-order Form* referred to in 2.7(5) is incorporated within *Annex 2*, and allows, in certain circumstances as specified within 4.3 of the *LVV ORS*, an LVV certification plate to be produced and issued prior to the completion of the LVV certification inspection process.

NOTE 2: In the case of an LVV Certifier appointed to certify Type-approved vehicles under LVV Certifier category 'LVCM Commercial Modification', an *F006 Certification Plate Pre-order Form* as referred to in 2.7(5) is not required to be provided to LVVTA, due to provision being made for plate pre-ordering within the *F001-CM Statement of Compliance Certificate*.

2.8 Action where a vehicle is not a low volume vehicle

- 2.8(1) Where an LVV Certifier has determined, in accordance with 2.3(2), that a modification has not affected compliance with an applicable requirement, and the vehicle therefore does not require LVV certification or re-certification, the LVV Certifier may provide the vehicle owner with written notification of this, in a manner prescribed by LVVTA, which must describe the modifications present on the vehicle, and clearly record the reasons for such determination.

NOTE: The intended purpose of such written notification is to confirm to an In-service or Entry Certifier that, despite the presence of modifications, the vehicle does not require LVV certification.

2.9 The LVV Certification Plate

- 2.9(1) Following receipt of an *F001 Statement of Compliance Certificate* and other necessary records in accordance with 2.7(4), the LVVTA must, subject to 2.9(2), and in accordance with *sub-section 5.2* of the *LVV ORS*, produce an LVV certification plate, and issue it to the LVV Certifier who carried out the LVV certification.

NOTE: The process referred to in 2.9(1) may be varied in the case where an *F006 Certification Plate Pre-order Form* is used to pre-order an LVV certification plate prior to the completion of the LVV certification inspection process.

- 2.9(2) Despite 2.9(1), the LVVTA must not produce or issue an LVV certification plate if the LVVTA has reason to believe that the vehicle has not been inspected in accordance with 2.4, 2.5, and 2.6.

- 2.9(3) An LVV certification plate produced and issued under 2.9(1) must, as best as can be practicably achieved taking into consideration the space constraints of the LVV certification plate, provide an accurate description of the vehicle's modifications, components, and systems.

2.10 Affixing the LVV Certification Plate

- 2.10(1) On receipt of the LVV certification plate assigned to the low volume vehicle, the LVV Certifier must affix it to that vehicle, unless:

- (a) there is reason to believe that the vehicle has been further modified, in a way that affects its compliance with one or more safety-related legal requirements prescribed by New Zealand land transport legislation, since the inspection conducted for the purpose of that certification; or
 - (b) there is reason to believe that the vehicle has been accident-damaged so that it no longer meets the general safety requirements for in-service fitness.
- 2.10(2) An LVV Certifier may delegate his authority to affix an LVV certification plate to a vehicle in accordance with the requirements specified within *Section 4* of the *LVV ORS*.
- 2.10(3) An LVV certification plate must be affixed to, and removed from, a low volume vehicle in accordance with the requirements specified within *Section 4* of the *LVV ORS*.
- 2.10(4) Where a low volume vehicle is modified after initial LVV certification in a way that compliance with one or more safety-related legal requirements prescribed by New Zealand land transport legislation may be affected:
 - (a) the vehicle must undergo a new LVV certification in accordance with the requirements of the Code; and
 - (b) the previous LVV certification plate must be removed and disposed of in accordance of *Section 4* of the *LVV ORS*.

2.11 Repairs

- 2.11(1) Any repairs carried out to a modified or scratch-built motor vehicle or its systems or components must, in accordance with *Land Transport Rule: Vehicle Repair 1998*, restore the damaged or worn vehicle, system or component so that it is within safe tolerance of the state of the vehicle, system or component when modified or built.

2.12 LVV Authority Cards

- 2.12(1) The addition, removal or modification of a component or series of safety-related components or systems may be authorised by an LVV Authority Card provided:
 - (a) the specific purpose is authorised by the Agency and listed in *Annex 5*; and
 - (b) the vehicle modified for that purpose is clearly identified by the Authority Card; and
 - (c) all changes to safety-related systems authorised by the Authority Card are clearly identified; and
 - (d) the Authority Card identifies the individual person requiring use of the vehicle for the specific purpose; and

- (e) the Authority Card is authorised by a LVV Certifier appointed by the Agency for one of the specific purposes shown in *Annex 5*; and
- (f) the Authority Card is valid for a period from the date of issue of not more than that period shown in *Annex 5*; and
- (g) the Authority Card conforms with LVVTA's specifications covering the design, construction, and layout of the Authority Card.

2.13 Exemptions

- 2.13(1) The Agency may grant an exemption from any specified requirement of the Code in accordance with *section 166* of the *Land Transport Act 1998*.

2.14 General provisions

- 2.14(1) A reference to an enactment, regulation or rule is a reference to that enactment, regulation or rule as amended, or to any enactment, regulation or rule that has been substituted for that enactment, regulation or rule.
- 2.14(2) The singular includes the plural and vice versa and words imparting any gender include any other genders.
- 2.14(3) Where reference is made in the Code to the Agency, that reference shall include any duly authorised employee or representative of the Agency.
- 2.14(4) Where any term or word(s) which is defined in any Act or Rule is used in the Code, whether or not as a defined term, that term or word(s), shall, unless the context or Code definition otherwise requires, have the meaning ascribed to it in the applicable Act or Rule.

2.15 Certification fees and royalties

- 2.15(1) In order to enable LVVTA to cover its operating costs associated with meeting its obligations and responsibilities under the LVV Code and the LVVTA-NZTA Operating Agreement, and for the use of the LVV Code and its associated LVV Standards and prescribed systems, it will:
- (a) set a certification fee (not including the crown regulatory fee) that fairly and reasonably reflects those responsibilities and obligations; and
 - (b) give a minimum of two months' notice to the Agency and the LVV Certifiers of any change in the certification fee.
- 2.15(2) An LVV Certifier, when forwarding the documents required under section 2 of the LVV Operating Requirements Schedule to LVVTA, must make payment to LVVTA, which shall include all monies required by the Agency as their crown regulatory fee.

Annex 1: LVV Standards incorporated into LVV Code

LVV Std #:	LVV Standard title:	Implementation date:
100-30(02)	External Projections (2 nd amendment)	25 October 2016
185-40(02)	Head Restraints (2 nd amendment)	25 October 2016
200-30(01)	Rear View Mirrors (1 st amendment)	01 August 2018
35-00(02)	Braking Systems (2 nd amendment)	25 October 2016
195-00(02)	Suspension Systems (2 nd amendment)	25 October 2016
155-30(02)	Frontal Impact (2 nd amendment)	25 October 2016
155-40(02)	Interior Impact (2 nd amendment)	25 October 2016
85-40(04)	Engine and Drive-train Conversions (4 th amendment)	01 July 2021
	Door Retention Systems (3 rd amendment)	25 October 2016
	(3 rd amendment)	01 December 2021
	(ent)	25 October 2016
190-70(03)	Lighting Equipment	25 October 2016
125-00(01)	Lighting Equipment	
45-30(05)	Disability Adaptive Control Systems	
185-00(03)	Seats and Seat Anchorages (3 rd amendment)	
90-20(05)	Exhaust Noise Emissions (5 th amendment)	25 October 2016
90-10(03)	Exhaust Gas Emissions (3 rd amendment)	25 October 2016
45-60(02)	Disability Transportation Systems (2 nd amendment)	25 October 2016
75-00(02)	Electric and Hybrid Vehicles (2 nd amendment)	01 November 2018
40-00(00)	Chassis Modifications and Construction	01 July 2021
105-00(00)	Fuel Systems	01 July 2021
110-00(00)	Glazing and Vision	To be developed
155-60(00)	Side Impact	To be developed
160-00(00)	Auxiliary Equipment	To be developed
145-00(00)	Motorcycles	To be developed
198-00(00)	Motorcycle-controlled Trikes	To be developed
NOTE: Column shading in this table in Annex 1 indicates LVV Standards that are not completed at the time of this Code amendment, but will be authorised for future incorporation into the Code in accordance with 1.3.		

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Annex 2:

LVV Forms & Form-sets incorporated into LVV Code

Form/set #:	LVV Form/set title:	Issue date:	Issue #:
F000-MN	LVV Certification Plate Order Form [M and NA class]	Feb 2021	10
F001-MN	LVV Statement of Compliance Certificate	Feb 2021	10
F002-MN	LVV Compliance Plate Data Form [modified class M and N]	July 2018	7
F003-MN	LVV Safety Item Form [registered vehicles]	July 2018	6
F004-MN	LVV Rectification Form	Feb 2021	8
F000-L	LVV Certification Plate Order Form [L class]	Feb 2021	10
F001-L	LVV Statement of Compliance Certificate	Feb 2021	8
	LVV Compliance Plate Data Form [L class]	July 2018	3
	LVV Safety Item Form [L class]	July 2018	6
		Feb 2021	7
		July 2018	2
F002-CM	LVV	2018	2
F005	LVV Plate Attachment Document		
F006	LVV Certification Plate Pre-order Form		
F007	LVV Category Extension Request Form		
F008	LVV Non-destructive Test Request Form	June 2018	
F010	LVV Application for Statement of Classification	Oct 2018	1
F011	Request for VIN Affix or Re-Affix	Oct 2022	1
F012	LVVTA Vin-Assign Vehicle Attributes Form	June 2023	1
FS007	Form-set – RHD Steering Conversions	July 2016	3
FS008	Form-set – Braking System Modifications	July 2016	2
FS009	Form-set – Brake Performance Test	July 2016	3
FS010	Form-set – Engine and Drive-train Conversions	Withdrawn	-
FS011	Form-set – Modified Suspension Systems	Aug 2016	4
FS012	Form-set – Upper Seatbelt Anchorage Request Form	Oct 2018	7
FS013	Request for the Disabling / Removal of Airbag	Oct 2018	4
FS014	Supplementary Form-set for Modified Vehicles	Withdrawn	-

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FS015	Form-set – Trikes with Motorcycle Controls	Aug 2014	3
FS016	Form-set – Seatbelt Anchorage Retro-fitting	Aug 2016	3
FS021	Form-set – Interior Impact	July 2016	4
FS022	Form-set – Door Retention Systems	July 2016	2
FS023	Form-set – Wheels & Tyres	Withdrawn	
FS027	Form-set – Frontal Impact	July 2016	2
FS028	Form-set – Terrano Rear Anchorages	Sep 2004	2
FS029	Form-set – Disability Adaptive Control Systems	July 2016	6
FS030	Form-set - Seats and Seat Anchorages	Aug 2016	3
FS031	Form-set - Security Vehicles	Jan 2005	1
FS032	Form-set - Mistral Rear Floor Modification Procedure	Jan 2005	1
	Form-set - External Projections	July 2016	3
	Form-set - Rear View Mirrors	Aug 2018	2
		July 2016	2
		Sept 2020	2
FS037	Form-set – Exhaust Gas	July 2016	8
FS038	Form-set – Exhaust Gas		2
FS039	Form-set – Bump-steer Swing-check Inspection		
FS040	Form-set – Disability Transportation Systems		
FS041	Stability Assessment	April 2023	
FS105	Chassis Modification & Construction	July 2021	2
FS106	Suspension Systems	Dec 2017	4
FS107	Steering Systems	Dec 2017	2
FS108	Braking Systems	Dec 2017	2
FS109	Engine & Drive-Train	July 2021	3
FS110	Fuel Systems	July 2021	2
FS112	Wheels & Tyres	Oct 2021	2
FS113	Body Modification & Construction	Dec 2017	2
FS115	Glazing & Vision	Dec 2017	2
FS116	Interior Equipment	Dec 2017	2
FS117	Lighting Equipment	Dec 2017	2

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FS118	Attachment Systems	Dec 2017	2
	Vehicle Operation	Dec 2017	2
	Glazing and Vision	2018	1
		2018	1
		2018	1
# not allocated	Form		1

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NOTE: Column shading in this table in Annex
time of this Code amendment, but will be
accordance with 1.3.

Annex 3:

LVV Safety Alerts incorporated into LVV Code

Safety Alert #:	Safety Alert title:	Issue date:	Issue #:
01-2018	Tie-rod End 'Extenders' for Bump-steer Reduction	Sept 2018	1
02-2018	'CPP'-brand Steering Couplers	Sept 2018	1
03-2018	Aluminium Wheel Nuts	Sept 2018	1
04-2018	Counterfeit Full-harness Seatbelts	Sept 2018	1
05-2018	Aftermarket Brake Booster	Sept 2018	1
06-2018	Kit Car Steering Column Shafts	Sept 2018	1
07-2018	Failed Steering Column Support Brackets	Sept 2018	1
	Tri-5 Chevrolet Power Steering Rack Kit	Sept 2018	1
	'CPP'-brand Steering Boxes	Sept 2018	1
		Oct 2018	1
11-2018		Nov 2018	1
12-2018	'TCI'-brand		1
01-2019	Strut Spacers and Ball-joint		
02-2019	APV Seatbelt Bolt Recall		
03-2019	'Superbell'-brand Ductile Cast Iron Spindles		
04-2019	'Superbell'-brand Ductile Cast Iron Spring Perch Bolts	April 2019	
05-2019	Aftermarket Cast I-beam Axle Failures	Sept 2020	1
06-2019	CPP-brand Welded Aftermarket Pitman Arm Failures	Sept 2020	2
01-2020	EPMAN-brand Harness Seatbelts	Sept 2020	1
02-2020	Machined-down Brake Calipers (for wheel clearance)	Sept 2020	1
03-2020	MBM-brand Disc Brake Kits	Sept 2020	1
04-2020	Sub-standard Suspension Arms	Sept 2020	1
05-2020	Y32 and Y33 Nissan Strut Warning	Dec 2020	1
06-2020	Multi-piece HICAS Lock-bars	Dec 2020	1
07-2020	Steering Rack Spacers	Dec 2020	1

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08-2020	Rear Suspension Failure – Graham Berry/Kiwi Race Cars AC Cobra Replica	Dec 2020	1
09-2020	'Heidts'-brand Suspension Arm Issue	Dec 2020	1
10-2020	Faulty Threads on Aftermarket Suspension Arms	Dec 2020	1
01-2021	'Magnum Force'-brand Aftermarket Dropped Spindles (Stub Axles)	June 2021	1
02-2021	Aftermarket Chrome Brake Booster Failure	June 2021	1
03-2021	Unsafe Aftermarket Wheel Nuts	June 2021	1
04-2021	Twin Beam Dropped Axle Failures DJM/LCM Truck-brand 'Dream Beam'	Sept 2021	1
05-2021	So-Cal-Brand Forged 5-Inch Dropped I-Beam Axles	Sept 2021	1
06-2021	Motorcycle Wheel Failures 'Motea Gmbh Crafride'-brand	Sept 2021	1
	Multi-Piece Aftermarket Suspension Arms Including 'SPC Performance' and 'Stiffler'-brands	Sept 2021	1
	Aftermarket One Piece Dropped Spindles (Stub Axles)	Sept 2021	1
	Aftermarket 'Helix'-brand	Oct 2021	1
01-2022	Motorcycle		1
02-2022	Steering Arm Failures – OEM (1932-1948)		
01-2023	Copies of 'Astro Supreme'-Brand Wheels		
02/2023	Aftermarket Tubular Suspension Arms with Cantilever-Style Ball Joints	June 2023	

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Annex 4:

LVV Technical Information Sheets incorporated into LVV Code

Info #:	LVV Form/set title:	Issue date:	Issue #:
05-1999	Frame and mounting strength for additional seats	Dec 1999	1
02-2000	Interior and Frontal Impact – Interim Guidelines for the Certification of Roll Bar & Cage Installations	Mar 2000	1
04-2001	Changing Frontal Impact Occupant Protection Systems	May 2001	1
03-2004	Nissan Terrano Rear Seatbelt Anchorage/Floor Rust Procedure	Nov 2018	2
05-2004	Upper Suspension Ball-joints in early Ford Falcons and Fairlanes	Aug 2004	1
06-2004	Release of New & Amended LVV Information Sheets	Sep 2004	1
07-2004	Re-issue of FS005 - Airbag Removal/Disablement	Sep 2004	1
08-2004	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
09-2004	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
10-2004	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
11-2004	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
12-2004	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
01-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
02-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
03-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
04-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
05-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
06-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
07-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
08-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
09-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
10-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2004	1
11-2005	Rear Shelf Speaker Aperture	Nov 2018	2
02-2006	Track-mounted Seat Attachment Systems	Jan 2005	1
03-2006	Seats and Seatbelts in Motor-homes	Jan 2005	1
02-2007	Power Steering Torsion Bar Modification	April 2007	1
03-2007	Stretched Limousines that Exceed the Manufacturer's Axle Ratings	April 2007	1
04-2007	Stainless-steel Braided Brake Hoses	April 2007	1
05-2008	Air Cylinder Suspension Systems	July 2008	1
06-2008	Three-wheeled vehicles (Trikes)	July 2011	2
07-2008	Exhaust Gas Emission Analyser Use	July 2008	1
08-2008	I-beam Axles and Split Radius Rods	Oct 2008	1
09-2008	Stretchers and Restraints on PSVs	Oct 2008	1
01-2009	Tyre Size to Rim Width Compatibility Guide	June 2021	5
02-2009	Adjustable Spring & Hub-carrier Suspension Systems	Feb 2009	1

03-2009	Towing A-frames	Feb 2009	1
04-2009	Steering Universal Joint Phasing	Feb 2009	2
05-2009	Class-change Situation for MC Vehicles	Feb 2009	1
06-2009	Converting 4-wheel Drive Vehicles to 2-wheel Drive	Feb 2009	1
07-2009	Removal of Side Airbag-equipped Seats	Feb 2009	1
08-2009	Material composition of modern vehicle structure	Aug 2009	1
09-2009	Steering Modification on air-bag equipped motorcycles	Aug 2009	1
04-2010	Bump-steer Measurement Background Information	Dec 2010	1
05-2010	Bump-steer Swing-check Procedure	Dec 2010	1
01-2011	'Supreme'-brand Aftermarket Wheels	Feb 2011	1
05-2011	Rear Suspension Radius Rod Geometry	July 2011	1
08-2011	Jaguar Independent Rear Suspension Installation Guide	Dec 2011	1
	Aftermarket Sport Seats – General Information	March 2012	1
	General Information	March 2012	1
		March 2012	1
05-2012		March 2012	1
06-2012	'Magnum'-brand		1
10-2012	Modified Kia Carnival LWB Safety Inspection		
01-2013	Unsafe Aftermarket Steering Columns		
02-2015	Technical Support Team for Unusually Complex Modifications	Sept 2015	
01-2016	Custom Independent Front & Rear Suspension (IFS/IRS) Approval Application Guide	March 2016	1
03-2017	Total Cost Involved (TCI) Independent Front Suspension System Failure	Dec 2017	1
01-2018	Welding Process for Cast or Forged Components	April 2018	1
01-2020	Removal of Seats Fitted with Side-impact Airbags (revised)	Sept 2020	2
02-2020	Wheelchair Restraints & Docking Station Rating Guide	Dec 2020	2
04-2020	Spherical Bearing Rod End Conversion for Steering Tie-rod Ends and Unloaded Suspension Ball-joints (V2)	June 2021	2
05-2020	Tyre Track and Protrusion of Tyres Beyond Mudguards	Dec 2020	1
07-2021	Power to Manual Steering Conversion	June 2021	1
09-2021	Raised Vehicle Stability Calculation	Oct 2021	1

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10-2021	Aftermarket Offset Brake Booster Assemblies	Nov 2021	1
01-2022	Wheel Adaptor Minimum Specifications	Oct 2022	1
02-2022	LVV Certification of Gross Vehicle Mass Upgrades	Oct 2022	1
01-2023	Copies of 'Astro Supreme'-Brand Wheels	June 2023	1
02-2023	Aftermarket Tubular Suspension Arms with Cantilever-style Ball Joints	June 2023	1
# not allocated	Effects on Scrub-line from dropped Spindles	2019	1
# not allocated	Burst-proof Door Latching Systems	2019	1
# not allocated	Front Bumper Modifications	2019	1
# not allocated	Motor-home body modifications	2019	1
# not allocated	Aftermarket Axles (follow-up)	2019	1
# not allocated	Aftermarket Steering Columns (follow-up)	2019	1
# not allocated	Items that Require NDT	2019	1
# not allocated		2019	1
# not allocated		2019	1
# not allocated		2020	1
# not allocated	Repair vs		1
# not allocated	Compliance Options Under		
# not allocated	Seam Reinforcement		
# not allocated	VIN De-coding		

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NOTE: Column shading in this table in Annex 3 indicates LVV Information Sheets that are not completed at the time of this Code amendment, but are authorised for future incorporation into the Code in accordance with 1.3.

Annex 5:

LVV **Non-Technical Information Sheets** incorporated into LVV Code

Info #:	LVV Form/set title:	Issue date:	Issue #:
02-1999	Issue of Inspection Form-set FS015 – Trikes with motorcycle controls	Nov 1999	1
01-2000	Issue of LVV Standards; External Projections, Door Retention Systems and Rear Vision Mirrors	Mar 2000	1
03-2000	LVVTA Document Issue	Mar 2000	1
05-2000	Issue of LVV Standard for Right Hand Drive Conversions	July 2000	1
09-2000	Dealing with VIN and Chassis identifier discrepancies	Nov 2000	1
10-2000	Issue of Standards for Braking Systems and Suspensions, also related survey process sheets	Nov 2000	1
	Classification of Vehicles with additional seating positions	Dec 2000	1
		Mar 2001	1
		Mar 2001	1
		April 2001	1
03-2001			1
01-2002	LVV certification of un...		1
02-2002	LVV Seatbelt Anchorage Standard release		
03-2002	LVV Frontal Impact & Interior Impact Standard release		
04-2002	LVV Code Issue 3 release	June 2002	
06-2002	LVV Engine & Drive-train Conversion Standard & Survey Sheet	Aug 2002	1
07-2002	Amended Door Retention System Standard & Survey Sheet	Aug 2002	1
01-2003	Release of new LVVTA Forms and Schedules	June 2003	1
02-2003	Release of New & Amended LVV Standards Form-sets and Schedules	Sept 2003	1
01-2004	Release of New & Amended LVVTA Forms and Schedules	April 2004	1
04-2004	Removal of Dual Controls from Driving School Cars	Sept 2004	1
06-2004	Release of New and Amended LVVTA LVV Information Sheets	Sept 2004	1
08-2004	Release of New and Amended LVVTA LVV Standards and Form-sets	Sept 2004	1
06-2005	Release of New & Amended LVVTA LVV Form-sets and Information Sheets	Jan 2005	1

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07-2005	Release of New LVVTA LVV Lighting Equipment Standard, Form-sets, and Revised Operating Requirements Schedule	March 2005	1
08-2005	Rear-seat Removal and Changing Vehicle Class to NA	Sep 2005	1
09-2005	Release of New & Amended LVV Standards and Form-sets	Sep 2005	1
10-2005	LVV Certification Operations Roles & Responsibilities	Nov 2005	1
01-2006	Upper Seatbelt Anchorage Request Form	Jan 2019	3
04-2006	Release of Exhaust Noise Emissions Standard	July 2006	1
05-2006	Exhaust Noise Emissions – Recent Developments	Aug 2006	1
01-2007	Release of Low Volume Vehicle Code – Issue 5	Feb 2007	1
05-2007	Release of Amended (Exhaust Noise Emissions) LVV Standard & Form-set	April 2007	1
06-2007	Delegation of LVV Certification Plate Attachment by LVV Certifier to a Nominated Person	July 2007	1
	Form-set Use for Scratch-built and Extensively Modified Vehicles	July 2007	1
	Release of New LVVTA LVV Operating Requirements Schedule, and	July 2007	1
01-2008	Release of Low Volume Vehicle Code – Issue 6	April 2008	1
02-2008	Changes to LVV Standard 90-00(01) (Exhaust Noise Emissions) (Amendment)		1
03-2008	Introduction of LVV Standards 90-10(00) (Lighting Equipment)		
04-2008	Amendment to LVV Standard 90-00(01) (Exhaust Noise Emissions)		
05-2009	Class-change Situation for Modified MC Vehicles	Feb 2009	
10-2009	F006 LVV Certification Plate Pre-order from Introduction	Aug 2009	1
01-2010	Introduction to LVV Operating Requirements Schedule (6 th Amendment)	Feb 2010	1
02-2010	Introduction to Revised and New F000 and F007 forms	Feb 2010	1
03-2010	Table-A Vehicle Classes (V2, issued June 2010)	June 2010	2
02-2011	Introduction or Revised LVV Code (Issue 7) & LVV Operating Requirements Schedule (Issue 8)	Feb 2011	1
03-2011	Review of Electronic Deceleration Meters	Feb 2011	1
04-2011	2011 Exhaust Noise Information Update	July 2011	1
06-2011	Incorrectly Registered Low Volume Vehicles	July 2011	1
07-2011	Objective Noise Test Information Package	Dec 2011	1
10-2021	Exhaust Gas Emissions LVV Standard Revision	Dec 2011	1

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11-2021	Release of Electric & Hybrid Vehicle LVV Standard	Dec 2011	1
01-2012	Custom Suspension Arm Inspection and Approval	March 2012	1
07-2012	LVV Certification of Child Seating	Aug 2012	1
08-2012	Re-issue of LVV Certification Threshold Schedule	Aug 2012	1
09-2012	Introduction of LVV Standard 45-60(0-0) (Disability Transportation Systems)	Aug 2012	1
11-2012	LVVTA Approval Application Guide	Dec 2012	1
01-2014	Series-production Modification Pre-approval Process	Aug 2014	1
02-2014	LVVTA Operational Certification Processing Information	Dec 2018	1
01-2015	LVV Certifiers' Plate Processing Guide	Sept 2015	1
02-2015	Technical Support Team for Unusually Complex Modifications	Sept 2015	1
02-2016	Re-issue of 13 Amended Low Volume Vehicle Standards	July 2016	1
	Re-issue of LVV Operating Requirements Schedule and LVV Code	July 2016	1
	Re-issue of LVV Operating Requirements Schedule and LVV Code	Aug 2016	1
	Re-issue of LVV Operating Requirements Schedule and LVV Code	Aug 2016	1
	Re-issue of LVV Operating Requirements Schedule and LVV Code	Aug 2016	1
06-2016	Re-issue of LVV Operating Requirements Schedule and LVV Code	Aug 2016	1
08-2016	Re-issue of LVV Operating Requirements Schedule and LVV Code		1
09-2016	Changes to LVVTA Non-destructive Test Requirements		
01-2017	Form-set Use & LVV Certification Plate Processing for LVCM-appointed LVV Certifiers		
02-2017	Introduction of Type-approval System & Re-issue of LVV Code & LVV ORS, and New Form-sets	July 2017	1
02-2018	'Modified Production' & 'Scratch-built' Low Volume Vehicle Definitions	Nov 2018	1
03-2020	Re-issue of Amended Lighting Equipment LVV Standard	Sept 2020	1
01-2021	Introduction of LVV Electronic Data Plates	Feb 2021	1
02-2021	Explanation of 'Next-generation' LVVTA Technical Documents	Feb 2021	1
03-2021	Re-issue of Amended LVV Standards 85-40 (Engine & Drive-train) & NZ Car Construction Manual Chapter 9 (Engine & Drive-train)	Feb 2021	1
04-2021	New LVV Standard, and NZ Car Construction Manual Chapter – Fuel Systems	June 2021	1
05-2021	New LVV Standard, and NZ Car Construction Manual Chapter – Chassis Modification and Construction	June 2021	1
06-2021	New LVV Standard, and NZ Car Construction Manual Chapter – Engine and Drive-train Conversion	June 2021	1

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08-2021	Wheels & Tyres Updated LVV Standard and NZ Car Construction Manual Chapter	Nov 2021	1
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Annex 6:
LVV Supporting Documents incorporated into LVV Code

Title:		Issue date:	Issue #:
LVV MTS		June 2017	11
LVV Mod...		Nov 2010	2
LVV MTS			6

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Annex 7:

Specific purposes covered by an LVV Authority Card

Card #:	Authority Card Purpose:	Issue date:
ACSP 01	Compliance with the Appendix Two, Vehicle Safety Requirements for competitions under the National Sporting Code of MotorSport New Zealand Inc, covering only those components and systems that do not comply with applicable requirements for general use on the road, and valid for a maximum period of 12 months only.	1 May 2002
ACSP 02	Compliance with Chapter 3, LVV Authority Card, under the New Zealand Car Construction Manual, covering only those components and systems that do not comply with applicable requirements for general use on the road, and valid for a maximum period of 12 months only.	01 Oct 2006

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Annex 8: Recognised Overseas Manufacturing Standards

Item #	Recognised Overseas Manufacturing Standard:	Acceptance date:
1	European Community Whole Vehicle Type Approval: A vehicle which meets European Community Whole Vehicle Type Approval (ECWVTA) in accordance with Directive 2007/46/EC (including subsequent amendments) is not required to undergo LVV certification in New Zealand, provided that: (a) compliance with ECWVTA is confirmed by the presence of a European Community Certificate of Conformity, and a valid ECWVTA plate or label which incorporates a type approval number which is permanently attached to the vehicle; and (b) the modifications made to the vehicle which are approved under the ECWVTA are recorded in Landata, in a manner prescribed by the New Zealand Transport Agency; and (c) the vehicle has not been further modified since the issue of ECWVTA. Such approval is an alternative to the New Zealand low volume vehicle certification process, and any vehicle to which ECWVTA applies must meet all other normal compliance requirements so as to enable the vehicle to be certified for entry into New Zealand. Further modified beyond those modifications listed within the LVVTA LVV Modification Threshold Schedule.	25 October 2016
2	Australian Second Stage of Manufacture: A vehicle which meets Australian Second Stage of Manufacture is not required to undergo LVV certification in New Zealand, provided that: (a) compliance with Australian Second Stage of Manufacture is confirmed by the presence of a valid plate or label which prominently displays 'Second Stage of Manufacture,' that is permanently attached to the vehicle; and (b) the VIN is recorded on the plate or label; and (c) an approval number is listed; and (d) compliance with the Motor Vehicle Standards Act 1989 is confirmed on the plate or label; and (e) the compliance plate does not state 'Nonstandard'; and (f) the modifications made to the vehicle which are approved under the Australian Second Stage of Manufacture are recorded in Landata in a manner prescribed by the New Zealand Transport Agency; and (g) the vehicle has not been further modified since the issue of ADR Second Stage of Manufacture compliance. Note 1: Such approval is an alternative to the New Zealand low volume vehicle certification process, and any vehicle to which Australian Second Stage of Manufacture applies must meet all other normal compliance requirements so as to enable the vehicle to be certified for entry into New Zealand. Note 2: 'Further modified' as referred to in (g) means modified beyond those modifications listed within the LVVTA LVV Modification Threshold Schedule.	30 June 2017

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	Note 3: For the avoidance of doubt, the GVM listed on the Second Stage of Manufacture approval is the GVM to be recorded (not the original manufacturer's GVM). If a GVM change has affected the class, an Entry Certifier must ensure that the vehicle is still a light vehicle, and if necessary, refer the vehicle to a Heavy Vehicle Specialist Certifier.	
3	Federal Motor Vehicle Safety Standards: A company who is approved by a high-volume vehicle manufacturer ^(see note 4) to modify that manufacturer's vehicles, can determine that a vehicle that they have modified meets Federal Motor Vehicle Safety Standards (FMVSS) compliance, and consequently, such vehicles are not required to undergo LVV certification in New Zealand, provided that: - the approved modifier confirms compliance with FMVSS by permanently attaching to the vehicle a valid FMVSS plate or label, which incorporates the vehicle chassis number and the approved company's name; and - the modifications made to the vehicle which are approved under the FMVSS are recorded in Landata in a manner prescribed by the New Zealand Transport Agency; and - the vehicle has not been further modified since the issue of FMVSS compliance. Such approval is an alternative to the New Zealand low volume vehicle process, and any vehicle to which FMVSS applies must meet all requirements so as to enable the vehicle to be modified beyond those threshold Schedule. UPDATE Due to the number of recently amended documents, please visit the Documents page of the LVVTA website for all current versions - www.lvvtta.org.nz Note 4: Ford and General Motors partner with selected approved manufacturers with specific part-built vehicles and incomplete FMVSS conversions completed as a hearse or stretched limousine. These vehicles are (and are therefore recognised as meeting the criteria above): - Cadillac Master Coachbuilders, who modify XTS Professional Vehicle Chassis (W30 Extended Sedan, V4U Limousine and/or B9Q Hearse) that are specifically engineered, designed and built for heavy-duty application and coachbuilder conversion. The conversions must be completed by a certified Cadillac Master Coachbuilder. To find a list of Cadillac Master Coachbuilders go to - http://www.gmfleet.com/resources/cadillac-master-coach-builders.html - Ford Motor Company Qualified Vehicle Modifiers (QVM) Program assists approved manufacturers in developing a high-quality conversion process, the Ford and Lincoln conversion chassis are specifically designed by Ford to meet rigorous industry requirements. QVM rules state that only Lincoln MKT Town Cars are approved for conversion into a stretch limousine. In addition, QVM rules specify that a MKT Town Car can only be stretched 120". The conversions must be completed by a Ford Motor Company Qualified Vehicle Modifier (QVM). To find a list of Qualified Vehicle Modifiers go to - http://www.fleet.ford.com/showroom/limo-livery-and-funeral/qualified-vehicle-modifiers/	30 June 2017

Annex 9: Details of the Legal Status of the LVV Code

Introduction:

This Annex is intended to explain to any interested persons or parties, the relationship between the Land Transport Rule: Vehicle Standards Compliance 2002 (the Compliance Rule) and the LVV Code, with particular emphasis on the sequence of legal requirements that specify that a modified light vehicle must be certified to the LVV Code, and what a vehicle undergoing certification to the LVV Code must comply with.

Land Transport Rule: Vehicle Standards Compliance 2002:

The Compliance Rule determines when specialist certification - LVV certification for the purpose of this explanation – is required, and what a vehicle undergoing LVV certification must comply with.

6.5 Specialist inspection and certification

The process within the Compliance Rule begins at section '6.5 Specialist inspection and certification'.

The Compliance Rule says (low volume vehicle) *"Specialist inspection and certification is required for the following (c)...subject to 6.5(3), low volume vehicle specialist inspection and certification by a (1)(g), if the vehicle is a light vehicle that, since it was manufactured, or last modified, as a low volume vehicle, has been modified so as to affect its*

"Specialist inspection and certification is required if the vehicle has been modified so as to affect its compliance with an applicable requirement."

(It should be noted that section 6 of the Compliance Rule sets out the same requirements under discussion here as the Compliance Rule.)

The next step is to understand what is meant by 'an applicable requirement' in the definitions section of the Compliance Rule.

Part 2 Definitions

Under the definition of 'applicable requirement', the Compliance Rule states: *"Applicable requirement means any requirement specified or incorporated in an Act, regulation, code or rule listed in Schedule 1 that applies to the design, construction, condition, equipment, modification, repair or maintenance of a specific vehicle."*

Schedule 1 Acts, regulations, the Low Volume Vehicle Code and rules

Schedule 1 (within Part 3 Schedules of the Compliance Rule) lists 11 different acts, regulations, rules, and the Code, preceded by *"Acts, regulations, the Low Volume Vehicle Code, and rules that may be applicable to vehicles certified under this rule:"* Included in the list is the Low Volume Vehicle Code.

Part 2 Definitions

For clarification, within the definitions section of the Compliance Rule, the definition of "The Low Volume Vehicle Code" means *"the Code of the Low Volume Vehicle Technical Association"*.

In summary:

The Compliance rule effectively states, therefore, that: If a light vehicle has been modified so as to affect its compliance with any applicable requirements that apply to its design, construction, or

modification, that are specified or incorporated in the Low Volume Vehicle Code, then low volume vehicle certification is required, and the provisions within the Code, and incorporated by reference within the Code, apply.

NZTA 2011 legal opinion:

The same 'legal chain of events' can be provided with more explanation via excerpts from a legal opinion sought by the NZTA Design Team, Access and Use (provided to LVVTA by the NZTA Design Team, Access and Use) from an NZTA Senior Legal Counsel during November 2011. The legal opinion was also peer-reviewed by two other NZTA Senior Legal Counsels. The relevant excerpts from the November 2011 legal opinion are as follows:

NZTA Question:	<i>"Are the LVV Standards referred to in the Code legal requirements?"</i>
NZTA legal review:	<i>"Clause 7.4(1) of the Rule provides that a vehicle may be certified for operation in service only if an inspector or inspecting organisation has identified the vehicle, and determined on reasonable grounds, that amongst other things, the vehicle 'complies with the applicable requirements'.</i> <i>'Applicable requirement' is defined in Part 2 of the Rule, as meaning 'any requirement specified or incorporated in an Act, regulation, code or rule listed in Schedule 1 that applies to the design, construction, condition, equipment, modification, repair or maintenance of a specific vehicle.</i> <i>... Rule, lists 'The Low Volume Vehicle Code'.</i> <i>... Volume Vehicle Code' as meaning the 'Code of the Low</i> <i>... and Transport rules also."</i>
NZTA legal summary:	<i>"Although ... 'Applicable requirement' (any req- ... listed in Schedule 1 that app- ... modification, repair or maintenance of u- ... incorporated into the Code to become an 'applicable ...</i>

The advice from the NZTA Senior Legal Counsel also sought to address the additional specific, whether or not an LVV Standard could apply where there is no applicable Rule, or applicable part of a Rule, relative to the aspects covered by the LVV Standard. The relevant excerpts from the November 2011 legal opinion are as follows:

NZTA Question:	<i>"Can the Low Volume Technical Association Incorporated (LVVTA) create a standard (to be incorporated into the Code) that imposes requirements for vehicle certification when some (or all) of the requirements in the standard are not requirements in the Compliance Rule?"</i>
NZTA legal review:	<i>"The Rule (which incorporates requirements specified in the Code), does not contain an empowering provision to make delegated legislation in respect of new standards (or a Code) regarding low volume vehicles. All it does is incorporate the Code as an additional requirement that must be met.</i> <i>A comparison would be to the Building Act 2004 which requires the 'building code' to be complied with and under section 400 of that Act gives the Governor-General the discretion to make regulations to be called the building code that prescribe certain requirements and criteria for buildings.</i> <i>However, again the definition of 'applicable requirement' in the Rule, does seem to allow additional requirements (ie in addition to those in the Rule) to be imposed by the Code, either specified in the Code itself or incorporated into the Code (as the Standard is)."</i>

NZTA legal summary:	<i>"The LVVTA can incorporate standards into the Code that may impose additional requirements to those specified in the Rule. Note that there are some controls within the Code itself that mean NZTA must approve amendments to the Code."</i>
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Further, the legal analysis sought to establish whether or not the reference to the Code in the Compliance Rule could include amendments made subsequently to the Code. The relevant excerpts from the November 2011 legal opinion are as follows:

NZTA Question:	<i>Does the reference to the Code in the Rule include amendments to the Code (and the Standards made under the Code) made subsequently to the Code?</i>
NZTA legal review:	<i>"Section 165(4) of the Land Transport Act 1998 provides that any material incorporated in a rule by reference under section 165(1), is to be treated for all purposes as forming part of the rule, and every amendment to that material is (subject to sections 165(5) and (6)) is to be treated as being part of the rule, unless otherwise provided for in the Rule.</i> <i>There is no provision in the Rule which states that amendments are not to form part of the Rule.</i> <i>The Code is presumably incorporated by the Rule by virtue of section 165(1)(d) which provides that "any other material or document that, in the opinion of the Minister or the Agency, is too large or impractical to be printed as part of the rule" may be incorporated by reference in a rule which is made.</i> <i>The 'amendment' is broad enough to allow for the Code to be amended to incorporate new standards."</i> <i>The Code includes amendments made subsequently to the Code, which are incorporated into the Code by amendment by reference in the Code under the</i>

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Terms and definitions

Applicable requirements	has the meaning ascribed to “applicable requirements” in <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> .
Application date	means the date on which a Rule, LVV Standard, LVV Information Sheet, LVV Form or Form-set, or LVV Supporting Document begins to apply.
Certify	means (as defined in the <i>Land Transport Rule: Vehicle Standards Compliance 2002</i>) in relation to a motor vehicle, to verify that the vehicle complies with safety-related legal requirements prescribed by New Zealand land transport legislation; and ‘certified’ and ‘certification’ have similar meanings.
Class	has the meaning ascribed to the term "Class" in the <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> .
Code	means a condition where evidence exists that a motor vehicle complies with the Code, LVV Standards, LVV Information Sheet, LVV Form or Form-set, or LVV Supporting Document.
ECWVTA	means a European type-approved vehicle type.
European Community Whole Vehicle Type Approval	means a European type-approved vehicle type for commercially-modified vehicles to be used within any EU country.
Fitness for purpose	when applied to a low volume vehicle, means the low volume vehicle is modified or constructed so that the vehicle, its structure, safety related systems, components and equipment will carry out their functions safely, having regard to any increased duty that the modifications or construction may place on them.
Gross vehicle mass	means (as defined in the <i>Land Transport Rule: Vehicle Standards Compliance 2002</i>) either: (a) the maximum permitted mass of the vehicle, which includes the mass of the accessories, the crew, the passengers and the load, and is, unless (b) applies, the gross vehicle mass specified by the manufacturer of that vehicle; or

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- (b) if a person approved for the purpose by the Agency determines that the gross vehicle mass should differ from that specified by the manufacturer, taking into account evidence on the capability of the systems and components of the vehicle, or the effects of any modification, that mass determined by that person.

GVM

is an abbreviation for gross vehicle mass.

In-service fitness

means in a safe condition equivalent to that required for the issue of a Warrant of Fitness or Certificate of Fitness, with the exception of the completion of LVV certification.

Inspection

means the vehicle inspection process prescribed by the Code, Section 2.4, 2.5 and 2.6, carried out by an LVV Certifier as a requirement for the certification of a low volume vehicle.

Inspecting organisation

means a person or organisation appointed by the Agency under 2.2(1) of the *Land Transport Rule: Vehicle Standards Compliance 2002* who is responsible for inspection and certification outcomes. An LVV Certifier is deemed by the Rule to be an inspecting organisation.

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for LVV Certifier category 'Low Volume' (CMIO)

LVCM-appointed LVV Certifier means a person or organisation appointed by the Agency under 2.2(1) of the *Land Transport Rule: Vehicle Standards Compliance 2002* who is responsible for inspection and certification outcomes. An LVV Certifier is deemed by the Rule to be an inspecting organisation.

LVV (low volume vehicle)

means a make and model of a vehicle, of a class specified in Table A: Vehicle classes, other than Class MD3, MD4, ME, NB, NC, TC or TD, that is:

- (a) manufactured, assembled or scratch-built in quantities of 500 or less in any one year, and where the construction of the vehicle may directly or indirectly affect compliance of the vehicle with any of the vehicle standards prescribed by New Zealand law; or
- (b) modified uniquely, or in quantities of 500 or less in any one year, in such a way that compliance of the vehicle, its structure, systems, components or equipment with a legal requirement relating to safety performance applicable at the time of the modification may be affected.

LVV Authority Card	means a certification document, issued under the delegated authority of the Agency, specifying alternative safety related equipment required by a vehicle for special purposes defined in <i>Annex 5</i> .
LVV Certification Plate	means a plate that is to be permanently affixed to a vehicle that, in a form approved by the LVVTA and the Agency, is engraved with data positively identifying the vehicle and the degree of modification applied to it within its compliance with the Code.
LVV Certifier	means a person appointed under the provisions of <i>Land Transport Rule: Vehicle Standards Compliance 2002</i> to carry out certification of low volume vehicles as specified by <i>Part 2</i> of the Code.
LVV Code (the Code)	means this Code.
LVV Inspection or Form-set	means one or more of a series of documents listed in <i>Annex 2</i> of the Code, issued by the LVVTA for the purpose of specifying inspection items required for LVV certification.
LVV Operating Requirements Schedule	means the LVV Operating Requirements Schedule
LVV Standard	means a standard issued under the Code.
LVV Supporting Documents	means those mandated documents listed in the LVV Code.
LVVTA	means the Low Volume Vehicle Technical Association Incorporated.
LVVTA Certification Manual	means the Manual issued by the LVVTA and includes any amendments made to the Manual from time to time by LVVTA.
LVVTA Information Sheets	means Information Sheets issued by the LVVTA and includes any amendments made to the Information Sheets from time to time by LVVTA.
Modify	in relation to a motor vehicle, means (as defined in the <i>Land Transport Rule: Vehicle Standards Compliance 2002</i>) to change the vehicle from its original state by altering, substituting, adding or removing any structure, system, component or equipment, but does not include repair; and 'modified' and 'modification' have corresponding meanings.

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Modified production (low volume vehicle)

means a vehicle that was produced by a recognised mass-produced vehicle manufacturer, has met the New Zealand Transport Agency's requirements necessary to enter service as a light vehicle, and has subsequently been modified in such a way that may affect one or more safety-related legal requirements, and either:

- (a) despite its modifications, the vehicle:
 - (i) continues to bear a clear visual resemblance, and is dimensionally similar, to the specific make, model, and year of the originating mass-produced vehicle; and
 - (ii) retains, from the originating mass-produced vehicle, 60% or more of the original or authentically-repaired body, (including panels, but not including external sub-panels), and 60% of the original or authentically-repaired chassis rails (or in the case of a unitary-constructed vehicle 60% of the floor-pan);

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or

- (c) is classified, on a case-by-case basis, in accordance with Section C of LVVTA Information Sheet # 02-2018 'Modified Production' and 'Scratch-built' Low Volume Vehicle Definitions, as a modified production low volume vehicle and confirmed as such via the issue of an LVVTA F010 Application for Statement of Classification.

NOTE 1: In any case where a lack of certainty exists as to whether or not a vehicle is a 'modified production' low volume vehicle, LVVTA should be consulted at the earliest opportunity so that the correct classification can be assigned to the vehicle. Due to the different way in which the technical requirements of the Low Volume Vehicle Code are applied to a 'modified production' low volume vehicle vs a 'scratch-built' low volume vehicle, it is important that a vehicle is correctly classified.

When reading the definition of a 'modified production' low volume vehicle, it is important to also read LVVTA Information Sheet # 02-2018 'Modified Production' and 'Scratch-built' Low Volume Vehicle Definitions so that a complete understanding of the definition can be gained.

NOTE 2: A vehicle may, by reason of design or component selection, fall outside of the primary 'modified production' low volume vehicle definition criteria specified in (a) of the definition, but despite this, due to the nature of generally-accepted modifications that are present on the vehicle, fall under (b) of the definition and still meet the spirit and intent of the 'modified production' low volume vehicle definition. Such vehicles will be identified in *Section B* of *LVVTA Information Sheet # 02-2018 'Modified Production' and 'Scratch-built' Low Volume Vehicle Definitions* and will be considered 'modified production' low volume vehicles.

Further, there are other vehicles which fall outside (a) and (b) of the definition because of the extent of the modifications which have been carried out, however may be considered, as provided for in (c) of the definition, on a case-by-case basis, to still be a 'modified production' low volume vehicle. This determination will be made in accordance with *Section C* of *LVVTA Information Sheet # 02-2018 'Modified Production' and 'Scratch-built' Low Volume Vehicle Definitions* by the NZTA-LVVTA Technical Working Group (as detailed in *sub-section 4.12* of the *LVV Operating Requirements Schedule* of the LVVTA).

In such cases where (c) of the definition applies, where appropriate, a vehicle may be classified as a 'modified production' low volume vehicle by the issue of an *LVVTA F010 Application for Statement of Classification*. In assessing any such vehicle, *LVVTA Information Sheet # 02-2018 'Modified Production' and 'Scratch-built' Low Volume Vehicle Definitions* will be applied by the NZTA-LVVTA Technical Working Group.

NOTE 3: The reference to 'body' in (a)(ii) of the definition includes the internal body structure which contributes to the body's overall structural integrity, and the reference to 'external sub-panels' in (a)(iii) of the definition means any panels including externally-mounted mudguards and running-boards which were fitted as original equipment and can be readily removed with the use of hand-

tools or authentically-repaired body, the reference in part (a)(ii) of the definition to 'body' includes the internal body structure which contributes to the body's overall structural integrity, and the reference to 'external sub-panels' in (a)(iii) of the definition means any panels including externally-mounted mudguards and running-boards which were fitted as original equipment and can be readily removed with the use of hand-tools.

Motor vehicle

means (as defined in the *Land Transport Act 2002* and *Land Transport Compliance 2002*) a vehicle drawn or propelled by an engine, motor, mechanical power; and includes a trailer, but does not include:

- (a) a vehicle running on rails;
- (b) a mobility device;
- (c) a trailer (other than a trailer designed solely for the carriage of goods) that is designed and used exclusively as part of the armament of the New Zealand Defence Force;
- (d) a trailer running on one wheel and designed exclusively as a speed measuring device or for testing the wear of vehicle tyres;
- (e) a vehicle designed for amusement purposes and used exclusively within a place of recreation, amusement, or entertainment to which the public does not have access with motor vehicles;

(f) a pedestrian-controlled machine;

(g) a vehicle that the Agency has declared is not a motor vehicle under section 168A of the Land Transport Act.

New Zealand Car Construction Manual

is a best-practice build-document used by New Zealand modifiers and constructors, and by LVV Certifiers as an inspection document, for extensively modified and scratch-built low volume vehicles, applicable where a particular modification or scratch-built feature is outside of the scope of an applicable LVV Standard, or where an LVV Standard is not in force or appropriate for a particular modification or scratch-built feature.

NZTA-LVVTA Policy Working Group

is as defined in 4.12 of the *LVVTA Operating Requirements Schedule*.

ORS

is an abbreviation for the LVV Operating Requirements Schedule of the LVVTA.

means a motor vehicle that is produced in quantities of more than 20 at any one location in any one year.

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Registered

vehicle, registered under the *Land Transport and Licensing Act*

Repair

means (as defined in *Land Transport Rule: Vehicle Standards Compliance 2002*) to restore the structure, systems, components or equipment of a vehicle by replacement of damaged or worn structures, systems, components or equipment with equivalent undamaged or new structures, systems, components or equipment.

Rule

means a Rule made under the *Land Transport Act 1998*.

Safe tolerance

means (as defined in the *Land Transport Rule: Vehicle Standards Compliance 2002*) the tolerance within which the safe performance of the vehicle, its structure, systems, components or equipment are not compromised, having regard to any manufacturer's operating limits.

Scratch-built (low volume vehicle)

means a low volume vehicle that is not a 'modified production' low volume vehicle.

NOTE: When reading the definition (above) of a 'scratch-built' low volume vehicle, it is important to also read *LVVTA Information Sheet # 02-2018 'Modified Production' and 'Scratch-built' Low Volume Vehicle Definitions* so that a complete understanding of the definition can be gained.

Statement of Compliance

means, in relation to a low volume vehicle, a document that summarises the evidence confirming that a low volume vehicle complies with this Code, the LVV Standards, LVV Information Sheets, and LVV Supporting Documents duly authenticated by the LVV Certifier and the LVVTA.

The Agency

means the New Zealand Transport Agency.

Type-approved low volume vehicle

means a low volume vehicle to which a specific set of identical modifications have been, or will be, made to a series of vehicles of the same make, model and specification, by a commercial modifier who is appointed by the Agency to certify under LVV Certifier category 'LVCM Commercial Modification', and where the design details of the specific set of modifications have been initially confirmed as meeting the LVV Code by an independent LVV Certifier with the appropriate categories.

NOTE: The initial inspection by an independent LVV Certifier of a low volume vehicle to which Type-approval certification will be subsequently applied by an LVCM-appointed LVV Certifier is a 'due-diligence' check only, and the LVCM-appointed LVV Certifier remains responsible for the certification of each of the vehicles within any series of identically-modified vehicles.

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Low Volume Vehicle Technical Association Inc members:

- Constructors Car Club Inc.
- Kiwi Trikers Social Club Inc.
- MotorSport New Zealand Inc.
- New Zealand Four Wheel Drive Association Inc.
- New Zealand Hot Rod Association Inc.
- New Zealand Motor Caravan Association Inc.
- Sports Car Club of New Zealand Inc.
- The Vintage Car Club of New Zealand Inc.
- Vehicle Association of New Zealand for People with Disabilities Inc.

Low Volume Vehicle Technical Association Inc:
UPDATE
Due to the number of recently amended documents, please visit the Documents page of the LVVTA website for all current versions - www.lvvta.org.nz

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